

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 39
JUDICIAL OFFICER: EDWARD G WEIL
HEARING DATE: 01/08/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 39's email address is: dept39@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 39 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 10:00 AM CASE NUMBER: C23-02528
CASE NAME: FLUENCE ENERGY, LLC VS. DIABLO ENERGY STORAGE, LLC
HEARING IN RE: INFORMAL DISCOVERY CONFERENCE SET BY THE COURT AS STIPULATED BY PARTIES
FILED BY:
TENTATIVE RULING:

Appearances required (by zoom is sufficient).

Law & Motion

2. 9:00 AM CASE NUMBER: C22-00897

CASE NAME: TIMOTHY ALVEY VS. JAMES WELDON

***HEARING ON MOTION IN RE: ORDER SUBSTITUTING PERSONAL REPRESENTATIVE AND LEAVE TO FILE FOURTH AMENDED COMPLAINT**

FILED BY: ALVEY, TIMOTHY L

TENTATIVE RULING:

The motion is **granted**. The moving papers establish sufficient grounds and there is no opposition. The **proposed Fourth Amended Complaint attached as Exhibit B to the Martinez declaration shall be filed within ten days after notice of entry of the order granting the motion.**

3. 9:00 AM CASE NUMBER: C22-01725

CASE NAME: LONELL SWEARINGTON VS. DONOR NETWORK WEST

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD OF DOCS, SET 2**

FILED BY: SWEARINGTON, LONELL R

TENTATIVE RULING:

Plaintiff moves to compel further responses to requests for production of documents, set two, specifically request Numbers 10 and 12. Request 10 seeks documents that constitute time records for non-exempt employees during the relevant time period. Request 12 is similar. This follows his motion to compel further responses to special interrogatories, set one. The three special interrogatories in question request (1) contact information for all employees during the relevant time period; (2) the number of employees during the period; and (3) the job titles or positions of employees in the same period. The issues are similar in each of the two motions.

The dispute was the subject of an Informal Discovery Conference with the Court on July 10, 2025. The underlying case is a wage and hour putative class action. A prior case, however, *Shweiki v. Donor Network West*, No. MSC20-00073 settled wage and hour claims from January 10, 2016 through August 22, 2022. Mr. Swearington opted out of that settlement, thus his individual claim may proceed. He brings this putative action to address claims accruing after August 22, 2022. Initially, the claims included prior time periods, but counsel ultimately agreed that it covered only post-August 2022 claims. (Regardless of whether counsel is bound by the statement, it is a necessary concession in this case.) The glitch in this effort is that he stopped working for defendant on July 23, 2021, and therefore is not and has never been a member of the class he seeks to represent. Accordingly, he seeks classwide discovery in order to find another class representative.

Plaintiff is entitled to make an effort to find a new class representative. Plaintiff points to cases that have allowed such discovery, including *Best Buy Stores, L.P. v. Superior Court* (2006) 137 Cal.App.4th 772, 774. and *Cash Call v. Superior Court* (2008) 159 Cal.App.4th 273, 284.) In these cases, however, the named plaintiff at one time was a class member, but ceased to be one. Where the plaintiff never was a class member, it has been held that no precertification discovery is permitted. (*First American Title Ins. Co.*, (2007) 146 Cal.App.4th 1564, 1577. (Trial court opinions do not set precedent and will not be considered.) (*Bolanos v. Superior Court* (2008) 169 Cal.App.4th 744; *In re Molz* (2005) 127 Cal.App.4th 836, 845.) Plaintiff points out in reply, however, that the *Shweiki* settlement was not